

The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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In the Matter of Lonna Lee Garza Trust

26-52729

PETITION CONCERNING INTERNAL AFFAIRS OF TRUST AND FOR ORDER:
(1) APPROVING NINTH, TENTH, AND ELEVENTH TRUST ACCOUNTS AND REPORTS
OF TRUSTEE, AND (2) APPROVING TRUSTEE COMPENSATION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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In The Matter of The Joan I. Amir Revocable Trust

26PR000139

PETITION

APPEARANCE REQUIRED. The parties shall attend prepared to discuss whether any opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in informal settlement discussions or other alternative dispute resolution proceedings. Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court's calendar. Counsel are directed to meet and confer on the foregoing issues prior to the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Andre Nave-Hernandez v. SRGA Resort, LP et al

25CV002138

[1] PLAINTIFF ANDRE NAVE-HERNANDEZ'S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT SRGA RESORT, LP, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE AND SPECIAL INTERROGATORIES, SET ONE, AND FOR SANCTIONS

TENTATIVE RULING: The matter is CONTINUED to August 13, 2026, at 8:30 a.m. in Dept. A.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030 subdivision (a) and 2023.040, for an order compelling Defendant SRGA Resort, LP, to produce further responses to Plaintiff's Form Interrogatories, Employment, Set One., Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1, Request for Production, Set

One., Nos. 1-12, and Special Interrogatories, Set One, Nos. 1-6 (collectively, the Subject Discovery).

[2] PLAINTIFF ANDRE NAVE-HERNANDEZ’S MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT AUBERGE RESORTS, LLC, TO FORM INTERROGATORIES EMPLOYMENT, SET ONE, REQUEST FOR PRODUCTION, SET ONE, SPECIAL INTERROGATORIES, SET ONE, REQUEST FOR ADMISSIONS, SET ONE, SPECIAL INTERROGATORIES, SET TWO, FORM INTERROGATORIES GENERAL, SET ONE, AND FOR SANCTIONS

TENTATIVE RULING: The motion is GRANTED IN PART. Defendant Auberge Resorts, LLC (Auberge), is ordered to serve, no later than 14 calendar days after Notice of Entry of this order, further responses to Plaintiff’s Form Interrogatory Nos. 12.3, 12.4, 12.5, 12.7, 200.6, 207.1, 207.2, 211.1, 211.2, Special Interrogatory Nos. 1, 3-5, 12-14, 17-23, 25, and 28, and Request for Production Nos. 5-6, and 8. The Motion is DENIED in all other respects, including the request for an award of monetary sanctions. Plaintiff Andre Naves-Hernandez is directed to file and serve a Notice of Entry of the instant order.

Plaintiff Andre Naves-Hernandez moves, pursuant to California Code of Civil Procedure Sections 2030.300, subdivision (d), 2031.310, subdivision (h), 2023.030, subdivision (a), 2023.040, and 2033.290, for an order compelling Defendant Auberge Resorts, LLC (Auberge), to provide further responses to Plaintiff’s Form Interrogatories Employment, Set One, Nos. 200.1, 200.4, 200.6, 201.4, 201.5, 201.6, 207.1, 207.2, 211.1, 211.2, 214.1, 214.2, 215.1, 215.2, 216.1; Request for Production, Set One, Nos. 1-12; Special Interrogatories, Set One, Nos. 1-6; Request for Admissions, Set One, Nos. 1, 4-6, 9-18, 20-32; Special Interrogatories, Set Two, Nos. 7-29; and Form Interrogatories General, Set One, Nos. 4.1, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 17.1. Plaintiff also moves for an award of monetary sanctions against Auberge in the amount of \$1,560.00.¹

A. GENERAL MATTERS

Plaintiff first contends that Auberge’s initial responses to the subject discovery are improper because they include preliminary statements and general objections. (See Support Memo at 3:11-4:9.) Plaintiff correctly notes that the Civil Discovery Act requires a responding party to respond separately to each interrogatory and to each request for production. It does not necessarily follow, however, that the inclusion of preliminary statements and/or general objections renders an otherwise proper response improper. Plaintiff fails to cite to authority supporting the suggestion that the Court has authority to order a responding party to serve further responses simply because they have included, in responses, superfluous matters and/or objections.

Similarly, Plaintiff contends that Auberge “must withdraw its meritless objections” to the subject discovery. (See Support Memo at 4:10-11.) However, Auberge is entitled to assert whatever objections it feels are appropriate. The question of whether they are meritorious is for

¹ All subsequent statutory references herein are to the Code of Civil Procedure unless otherwise noted.

the Court, on the instant motion to compel. (See *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220–221 [held: for interrogatories, the propounding party has the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, but “the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory”].) Plaintiff fails to cite to authority providing that the Court may order a responding party to withdraw objections – even meritless objections – that are timely and properly asserted.

Auberge argues in its Responsive Separate Statement, as to most of the subject discovery, that Plaintiff does not specifically contend or argue that the responses are insufficient. Rather, Plaintiff repeatedly argues that Auberge’s objections are meritless, and then states, “[p]lease withdraw your objections and confirm that your answer is complete.” (See, *e.g.*, Separate Statement at 8:9-10; see also Responsive Separate Statement at 12:6-7 [“Plaintiff does not take issue with the extent of the substantive response to this interrogatory but rather focuses on the objections that were made”].)

As noted above, the Court agrees that Auberge is not required to withdraw its objections. However, regardless of its objections, if Auberge elects to respond to an interrogatory, that response “shall be as complete and straightforward as the information reasonably available to the responding party permits . . . [and] . . . [i]f the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220.) With regard to demands for production of documents, “[a] statement that the party to whom a demand . . . has been directed will comply with the particular demand *shall state* that the production, inspection [etc.] demanded, will be allowed *either in whole or in part*, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production. (§ 2031.220. Italics added.)

In the context of the foregoing statutes, the Court shares Plaintiff’s frustration with Auberge’s failure and refusal simply to state whether it is withholding information or documents based on its asserted objections. The Court notes Auberge’s tendency to assert the same objections, without apparent discrimination, and in boilerplate fashion, to each discovery request. The Court also notes Auberge’s failure to clearly state, through its Responsive Separate Statement, whether, and if so to what extent, it is withholding information based on specific objections. Similarly, Auberge fails to state whether its answers are complete. In fact, Auberge’s Responsive Separate Statement, by asserting the validity of certain objections, strongly suggests that Auberge *is*, in fact, withholding information based on objections. (See, *e.g.*, Responsive Separate Statement at 12:11-21.)

The Court is sympathetic to Plaintiff’s argument that Auberge’s responses are evasive in light of the number and boilerplate style of objections asserted, and its unwillingness to clearly state whether the substantive responses are complete. Moreover, Auberge’s asserted justifications for many of its objections are strikingly abstract of discussion of the discovery request at issue.

Based on the foregoing, the Court, by Minute Order of July 16, 2026, continued the hearing to this date, ordered the parties to further meet and confer, and ordered Auberge “to

identify for Plaintiff, in a writing served no later than July 23, 2026, each of the subject discovery requests as to which it is withholding information and/or documents based on an objection. For each, it shall identify the objection(s) and provide a brief argument, *specific to the subject request and the specific objection*, supporting its decision to withhold the information. The parties shall then meet and confer in an attempt to resolve any disputes regarding such withholding.” The Court then “directed” the parties “to file, not later than July 31, 2026, either a Joint Supplemental Separate Statement, or respective Supplemental Separate Statements identifying, for the Court, which disputes have been resolved, and for each that remains in contention, the arguments for and against the motion to compel further production, in light of the parties’ meet and confer efforts.”

On July 31, 2026, Plaintiff filed a Separate Statement. Auberge failed to do so. Plaintiff concedes, however, that Auberge served a “Discovery Statement” on July 23, 2026. (See Separate Statement at 2:9-11.) Plaintiff did not provide the Court a copy of the Discovery Statement. The Court presumes that the Discovery Statement conforms to the Court’s July 16, 2026, mandates, as Plaintiff does not contend otherwise. Plaintiff represents that “Auberge agreed to serve verified supplemental responses to Form Interrogatory Employment No. 216.1, and Special Interrogatories (Set Two) Nos. 7, 10, and 14, and 24, and to produce the Hotel Management Agreement between Auberge and SRGA. Plaintiff withdraws these five items from the pending Motion.” (Separate Statement at 4:6-11.)

In this context, the Court proceeds to analyze the remaining requests.

B. REQUESTS FOR ADMISSIONS

“RFAs are different from other civil discovery tools such as depositions, interrogatories, and requests for documents. ‘Most of the other discovery procedures are aimed primarily at assisting counsel to prepare for trial. Requests for admissions, on the other hand, are primarily aimed at setting at rest a triable issue so that it will not have to be tried. Thus, such requests, in a most definite manner, are aimed at expediting the trial.’ [Citations.]” (*St. Mary v. Super. Ct.* (2014) 223 Cal.App.4th 762, 774-775; see also § 2033.410.) The consequence of failing to admit a provable fact is established by statute. “[i]f a party fails to admit ... the truth of any matter when requested to do so under this chapter, and if the party requesting that admission thereafter proves ... the truth of that matter, the party requesting the admission may move the court for an order requiring the party to whom the request was directed to pay the reasonable expenses incurred in making that proof, including reasonable attorney’s fees.” (§ 2033.420.)

A party moving to compel further responses to production of documents must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (§ 2031.310, subd. (b)(1).) No such showing is required, however, of a party moving to compel further responses to a request for admissions. (See Code Civ. Proc. § 2033.290, subd. (b).) In this procedural regard, a motion to compel further responses to requests for admissions is governed by language identical with that providing for a motion to compel further responses to interrogatories. (See Code Civ. Proc., § 2030.300, subd. (b).) Based on the foregoing, while the party propounding requests for admissions may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to

respond remains at all times with the party resisting the request. (See *Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220–221.)

Request for Admission Nos. 1, 5-6, 9, 16-18, 20, 26-27: The Motion is DENIED as to these Requests. Auberge admitted the truth of the respective matters asserted in each. Plaintiff fails to persuade the Court that anything further is required.

Request for Admission No. 4, 10-15, 21-25: The Motion is DENIED as to these Requests. Auberge denied the truth of the respective matters asserted in each. Plaintiff fails to persuade the Court that anything further is required.

Request for Admission No. 28: The Motion is DENIED as to this Request. Auberge responded that it “is without knowledge as to the facts at issue in this Request and after making a reasonable inquiry, Responding Party can neither admit nor deny in response to this Request.” (RSS at 115:27-116:1.) The Court finds that the response complies with Section 2033.220, subdivisions (b)(3) and (c). Plaintiff fails to persuade the Court that anything further is required.

C. INTERROGATORIES

As noted above, “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that...[a]n answer to a particular interrogatory is evasive or incomplete...[a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate...[or]...[a]n objection to an interrogatory is without merit or too general.” (§ 2030.300, subd. (a).)

A party upon whom interrogatories are propounded, ‘has a general duty to conduct a reasonable investigation to obtain responsive information [citation] and must furnish information from all sources under his or her control. [Citation.]’ (*Regency Health Services, Inc. v. Super. Ct.* (1998) 64 Cal.App.4th 1496, 1504 (*Regency Health*).) “Verification of the answers is in effect a declaration *that the party has disclosed all information which is available to him*. If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.” (*Deyo v. Kilbome* (1978) 84 Cal.App.3d 771, 782 (*Deyo*). Italics added.)

Form Interrogatory No. 4.1, 12.1, 12.2, 12.6, 13.1, 13.2: The Motion is DENIED as to these interrogatories. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that it is deficient or that anything further is required.

Form Interrogatory No. 12.3: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf obtained a statement, Auberge responds only that it “does not have any non-privileged statements at this time.” (RSS at 181:19-20.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 12.4: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf knows of any photographs, films, or videotapes, Auberge responds only that it “does not have any recordings relevant to Plaintiff’s Complaint.” (RSS at 185:1-2.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 12.5: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf knows of any diagram, reproduction, or model, Auberge responds only that it “does not have any diagrams, reproductions, or models relevant to Plaintiff’s Complaint.” (RSS at 187:12-13.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 12.7: The Motion is GRANTED as to this interrogatory.

While the interrogatory asks if Auberge or anyone acting on its behalf inspected the scene, Auberge responds only that “[n]o reports were made to the best of Responding Party’s knowledge.” (RSS at 192:12-13.) The answer is non-responsive.

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory No. 17.1: The Motion is DENIED as to this interrogatory. Auberge provided a substantive response. (See RSS at 199:7-203:18.) Plaintiff fails to persuade the Court that anything further is required.

Form Interrogatory Nos. 200.1, 200.4: The Motion is DENIED as to these interrogatories. Each seeks information specifically relating to an “Employment relationship” between Plaintiff and Auberge. (See Declaration of Michael Seville, Exh. 1, at § 4, subd. (c)-(e), p. 2 (Seville Dec.)) Auberge responded, to each interrogatory, that “Responding Party was not Plaintiff’s employer at any time relevant to Plaintiff’s complaint.” The Court finds that this answer renders each of these interrogatories moot.

Form Interrogatory No. 200.6: The Motion is GRANTED as to this interrogatory. Auberge’s answer to the Interrogatory is non-responsive. (See Responsive Separate Statement at 13:1-10 (RSS).) Auberge fails to justify any of its asserted objections to the Interrogatory. As such, all

such objections, save those based on attorney-client privilege and/or attorney work product are overruled. (See *id.* at 14:18-28.)

Form Interrogatory Nos. 201.4, 201.5, 201.6: The Motion is DENIED as to these interrogatories. Each appears to be a follow up to Form Interrogatory Nos. 201.1, 201.2, and/or 201.3. (See, *e.g.*, Interrogatory No. 201.4 [“Was the TERMINATION or any other ADVERSE EMPLOYMENT ACTIONS referred to in Interrogatories 201.1 through 201.3 based in whole or in part on the EMPLOYEE’S job performance?”].) However, Plaintiff propounded none of Form Interrogatory Nos. 201.1, 201.2, or 201.3. (See Seville Decl., Exh. 1 at p. 3.)

Moreover, each of these interrogatories seeks information specifically relating to an “Employment relationship” between Plaintiff and Auberge. (See Declaration of Michael Seville, Exh. 1, at § 4, subd. (c)-(e), p. 2 (Seville Dec.).) Auberge responded, to each interrogatory, that “Responding Party was not Plaintiff’s employer at any time relevant to Plaintiff’s complaint.” The Court finds that this answer renders each interrogatory moot.

Form Interrogatory Nos. 207.1, 207.2: The Motion is GRANTED as to these interrogatories. Auberge’s answer to each interrogatory is non-responsive. Neither interrogatory is rendered moot by Auberge’s denial of an employment relationship. Interrogatory No. 207.1 seeks information regarding Auberge’s policies and procedures. Interrogatory No. 207.2 asks about communications between Plaintiff and Auberge. Auberge did not object on grounds of relevance, or a lack of good cause for the discovery. Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory Nos. 211.1, 211.2: The Motion is GRANTED as to these interrogatories. Auberge’s answer to each interrogatory is non-responsive. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”]) Neither interrogatory is rendered moot by Auberge’s denial of an employment relationship. Auberge did not object on grounds of relevance, or a lack of good cause for the discovery. Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Form Interrogatory Nos. 214.1, 214.2, 215.1, and 215.2: The Motion is DENIED as to these interrogatories. The respective substantive answers appear to be complete and code compliant. Plaintiff fails to persuade the Court that either is deficient or that anything further is required.

Special Interrogatory No. 1: The Motion is GRANTED as to this interrogatory.

Auberge identifies an individual through its substantive response. However, it fails to address any of the remaining subparts of the interrogatory. Auberge did not object to the interrogatory on grounds that it is compound. Based on the foregoing, the Court finds that the response is insufficient and/or incomplete. “If the responding party does not have personal

knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory Nos. 2, 6, 8-9, 11, 15-16, 26-27, 29: The Motion is DENIED as to these interrogatories. The respective substantive answer to each appears to be complete and code compliant. Plaintiff fails to persuade the Court that any are deficient or that anything further is required.

Special Interrogatory No. 3: The Motion is GRANTED as to this interrogatory.

Auberge identifies an individual through its substantive response to Special Interrogatory No. 2. However, it fails to respond to this follow up interrogatory. Based on the foregoing, the Court finds that the response is insufficient and/or incomplete. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 4: The Motion is GRANTED as to this interrogatory.

The interrogatory asks Auberge to identify documents. Auberge responded that it “is not in possession of any non-privileged documents that would be responsive to this Interrogatory.” (See RSS at 87:13-14.) The answer is non-responsive. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 5: The Motion is GRANTED as to this interrogatory.

The interrogatory asks Auberge to identify documents “related to or containing any complaints.” (RSS at 89:3.) Auberge responded that it “Plaintiff [*sic*] is unaware of any complaints regarding any guests of Stanly Ranch.” (See RSS at 89:25-26.) The answer is non-responsive. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo, supra*, 84

Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 12 and 23: The Motion is GRANTED as to these interrogatories. Auberge refused to provide any substantive response to the interrogatories. (See RSS at 131:25-132:4, 154:9-10.) Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory Nos. 13-14, 17-20, 22: The Motion is GRANTED as to these interrogatories. Auberge’s substantive answer to each indicates an involvement, but fails to respond to the interrogatory. Auberge fails to justify any of its asserted objections. The assertion that Auberge was not Plaintiff’s employer has no clear impact on the relevance of the interrogatory. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 21: The Motion is GRANTED as to this interrogatory.

The interrogatory asks Auberge to identify “all PERSONS at YOUR company who were consulted, notified, or involved in any way regarding the decision to terminate PLAINTIFF’S employment.” (RSS at 150:2-3.) Auberge responded that “[t]he individuals employed at Stanly Ranch are not and have never been Responding Party’s employees.” (See RSS at 150:14-15.) The answer is non-responsive. “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state . . .” (§ 2030.220; see also *Deyo*, *supra*, 84 Cal.App.3d 782 [“If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control.”])

Auberge fails to justify any of its asserted objections. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 25: The Motion is GRANTED as to this interrogatory. Auberge’s substantive response does not address the question. Auberge fails to justify any of its asserted objections. While the Court is sympathetic to Auberge’s original objection that the interrogatory is vague and ambiguous, Auberge did not renew, discuss, or argue that objection in responding to the Motion. (See RSS at 159:4-21.) As such, all of Auberge’s objections, save those based on attorney-client privilege and/or attorney work product are overruled.

Special Interrogatory No. 28: The Motion is GRANTED as to this interrogatory. Auberge fails to respond to the interrogatory. Auberge fails to justify any of its asserted objections. The assertion that Auberge was not Plaintiff’s employer has no clear impact on the relevance of the

interrogatory. As such, all such objections, save those based on attorney-client privilege and/or attorney work product are overruled.

D. REQUESTS FOR PRODUCTION

The burden on the propounding party is higher in compelling responses to production of documents than in compelling responses to interrogatories. The motion to compel must “set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) “[A]bsent a claim of privilege or attorney work product, the party who seeks to compel production has met his burden of showing good cause simply by a fact-specific showing of relevance.” (*Kirkland v. Super. Ct.* (2002) 95 Cal.App.4th, 92 98.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating a settlement.” (*Glenfed Development Corp. v. Super. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is shown, the burden shifts to the party opposing the motion to justify its objection(s). (See *Kirkland v. Super. Ct.*, *supra*, at 98.)

Request for Production No. 1-4, 7, 9, 11-12: The Motion is DENIED as to these requests.

These requests each seek documents relating to Plaintiff’s employment with Auberge. However, Auberge replied that “it was not Plaintiff’s employer at any time relevant to the Complaint and as a result, Responding Party is not in possession of Plaintiff’s employment records.” (See, *e.g.*, RSS at 48:24-25.) In this context, Plaintiff fails to make a showing of good cause for the discovery.

Request for Production Nos. 5-6, 8: The Motion is GRANTED as to these Requests.

The Court finds, from a review of the operative pleadings, good cause for each request.

Auberge responded that “Responding Party cannot comply with this request because the requested documents are not in the possession, control or custody of Responding Party. A diligent and reasonable search was made to locate these documents. Responding Party was not Plaintiff’s employer at any time relevant to the Complaint. As a result, Responding Party did not directly set any policies applicable to Plaintiff’s employment.” (RSS at 58:2-6.)

Auberge’s assertion that Plaintiff was not employed by Auberge does not appear to have any bearing on the relevance of the documents sought by these requests.

“A representation of inability to comply with the particular demand . . . shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (§ 2031.230.) Auberge’s respective answers to each of these requests fail to set forth this information.

Request for Production No. 10: The Motion is DENIED as to this Request.

The Court finds, from a review of the pleadings, good cause for the documents sought by this request.

Auberge responded to the request by answering “Responding Party cannot comply with this request because the requested documents are not in the possession, control or custody of Responding Party. A diligent and reasonable search was made to locate these documents. Responding Party did not have any contracts with Robert Pausmith.” (RSS at 68:23-25.) The Court finds that a reasonable inference from the last statement is that no responsive documents ever existed in Auberge’s possession, custody, or control. The Court, therefore, finds that the response satisfies the requirements of Section 2031.230.)

Plaintiff fails to persuade the Court that anything further is required.

E. SANCTIONS

The Court finds that other circumstances make the imposition of sanctions unjust. (See §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

“‘It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) ... that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

The disputes presented by the instant motion reflect a failure on the part of counsel for each party to work to honor their client’s discovery obligations. None of the scores of disputes presented were difficult for the Court to resolve. None represented a balancing of competing rights. Rather, it appears to the Court that the parties ignored their respective rights and obligations under the Civil Discovery Act, and engaged in significant overreach. By its Minute Order of July 16, 2026, the Court noted that counsels’ meet and confer efforts appeared to have been perfunctory. The Court specifically noted weaknesses in the positions taken by each of the parties, and ordered the parties to meet and confer further. The parties’ failure to make any significant progress towards resolving the instant dispute, despite the Court’s guidance regarding their respective arguments, is striking.

Based on the foregoing, Plaintiff’s request for an award of monetary sanctions is DENIED.

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Wells Fargo Bank, N.A. v. Kenneth B Salomon

25CV002275

MOTION TO QUASH SERVICE

TENTATIVE RULING: The motion is GRANTED.